

Conclusion

As such, Defendant Universal's demurrer to the fourth cause of action is **sustained without leave to amend**.

9. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT FILED BY
DEFENDANT UNIVERSAL PROTECTION SERVICE, LP
FILED BY: UNIVERSAL PROTECTION SERVICE, LP
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Before the Court is Defendant BJ's Restaurant & Brewhouse, Inc.'s Demurrer to Plaintiffs' First Amended Complaint.

Defendant BJ's Demurrer is **sustained with partial leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of February 10, 2024, involving Plaintiffs' son – Christopher Cannedy. At that time, Andres Hernandez was employed by Defendant BJ's Restaurant, located in Brentwood, California. (¶ 6.) After his shift, Mr. Hernandez engaged in heavy drinking of alcohol behind the restaurant with other BJ's employees. (¶ 7.) He and his fellow employees drank for several hours. (*Ibid.*)

"Miguel," a manager of BJ's, had a policy of permitting employees to drink during their shifts and to drink for up to 30-minutes after their shifts behind the restaurant. (¶ 8.) The 30-minute rule was not enforced. (*Ibid.*) The location of the drinking was such that it would be readily observable by anyone visiting the restaurant, including any corporate representative or officer visiting the restaurant. (¶ 9.) BJ's had a corporate policy that recognized the risks of permitting employees to drink at work or to drink in excess. (¶ 10.)

Defendant Allied provided security to the Beautiful Streets of Brentwood Shopping Center ("Mall") wherein the BJ's restaurant was located. (¶ 13.) Public intoxication is a misdemeanor. (*Ibid.*) The drinking behind the BJ's restaurant was a nearly nightly occurrence. (*Ibid.*) It is alleged that Allied should have been aware of this practice but took no steps to interrupt or prohibit the activity. (*Ibid.*)

On the morning of February 10, Mr. Hernandez left the BJ's restaurant parking lot with a blood alcohol level of 0.165%. (¶ 14.) He proceeded to enter State Route 4 going the wrong way and collided head on with Christopher Cannedy. (*Ibid.*) Both drivers were killed in the accident. (*Ibid.*)